

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

WCG GROUP, LLC DBA AITOH CO., *Claimant*

v.

CHRIS PHILLIPS AND PAUL KNOTT, *Respondents.*

DOCKET NO. 1999(F)

Served: February 7, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

NOTICE OF REASSIGNMENT TO ADMINISTRATIVE LAW JUDGE

On November 28, 2023, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), stating that Claimant WCG Group, LLC dba Aitoh Co. (“Aitoh”) had filed an informal complaint against Respondents Chris Phillips and Paul Knott alleging violations of the Shipping Act. The complaint was docketed as an informal complaint pursuant to 46 C.F.R. Subpart S and assigned to the Chief Administrative Law Judge for appointment of a Small Claims Officer. The Notice stated that Respondents must state whether they consent to the adjudication of the Claim under the informal procedures set forth at Subpart S of the Commission’s Rules of Practice and Procedure.

On December 26, 2023, Respondent Paul Knott filed an answer to the informal complaint, a motion to dismiss the complaint, and a memorandum in support of his motion to dismiss. In his answer to the informal complaint, Respondent did not decline the use of the informal procedures for adjudication of the claim. Accordingly, on January 17, 2024, the claim was assigned to the Small Claims Officer for adjudication. However, Respondent Paul Knott also filed a separate affidavit in which he stated that he did “not authorize the Small Claims Officer to determine the above-numbered claim in accordance with Subpart S (46 C.F.R. § 502) of the Commission’s informal procedure for adjudication of small claims subject to discretionary Commission Review.” On February 8, 2024, Respondent clarified that it was his intent in the affidavit to request an election of a formal proceeding with an Administrative Law Judge. Therefore, the claim will be reassigned to an Administrative Law Judge for adjudication under the procedures at 46 C.F.R. Subpart T. 46 C.F.R. § 502.311. This proceeding is assigned to the Honorable Linda S. Harris Crovella, who will conduct such hearings and conferences as may be necessary to resolve the issues in this proceeding and to issue an initial decision or dispositive ruling. In addition, the docket number is changed to 1999(F).

Respondent Chris Phillip has not filed an answer to the claim. If Respondent Chris Phillip fails to respond, he may be subject to a default decision.

Respondent Paul Knott filed a motion to dismiss. Complainant should respond to the motion to dismiss by February 21, 2024.

By Commission order, certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints are currently waived. Order (May 12, 2020), Docket No. 20-07, available at www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf. Parties should email any filings to secretary@fmc.gov with courtesy copies (cc) to the opposing party and judges@fmc.gov.

Information regarding where to find the Commission's rules of practice and procedure (46 C.F.R. § 502), Commission decisions, and other information helpful to parties may be found in the reading room section of the Commission's website at www2.fmc.gov/readingroom. Parties are strongly urged to familiarize themselves with the Commission's rules of practice and procedure. All filings and all attachments must have page numbers, or they may be rejected.


Erin M. Wirth
Chief Administrative Law Judge